

Sanjeev Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 July 2015 · Criminal Misc. Writ Petition No. 17854 of 2015 · **s.135 FIR not quashed; CrPC arrest safeguards; compounding left open**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. Where arrest has not been made and the offence will not entail a sentence of more than seven years, police must comply with Cr.P.C. Section 41(1)(b) read with Section 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003.

FACTUAL SUMMARY

Sanjeev Kumar filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash FIR dated 6 June 2015, Case Crime No. 77 of 2015, registered under Section 135 of the Electricity Act, 2003 at Police Station Barhan, District Agra. He had not been arrested. His counsel submitted that the alleged offence could not attract a sentence exceeding seven years and that the police should not arrest him mechanically, in breach of Sections 41(1)(b) and 41-A of the Code of Criminal Procedure.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of s.135 FIR; arrest safeguards

HOLDING

An FIR registered under Section 135 of the Electricity Act that discloses a cognizable offence is not quashed in writ jurisdiction. If arrest is to be effectuated and the offence will not entail a sentence of more than seven years, police must comply with Section 41(1)(b) read with Section 41-A of the Cr.P.C. ¶ 1

HOLDING-UNIT · EA2003::152

compounding of s.135 offence

HOLDING

If the Section 135 offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. Where arrest has not been made and the offence will not entail a sentence of more than seven years, police must comply with Cr.P.C. Section 41(1)(b) read with Section 41-A.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS, AND COMPOUNDING ON MERITS

Left to the statutory compounding remedy if the offence is compoundable. ¶ 1

